

DUTIES OF TRUSTEES FOR SALE. (1)

THE subject of trusts for sale may be conveniently distributed under three heads: *First*, The general duties of trustees for sale; *Secondly*, The power of trustees to sign discharges for the purchase-money; and *Thirdly*, The disability of trustees to become purchasers of the trust property.

SECTION I.

THE GENERAL DUTIES OF TRUSTEES FOR SALE.¹

1. Trustees may sell without applying to the Court. — It need scarcely be observed that trustees for sale where they are not parties to a suit, are authorised to enter into contracts

[(1) It should be borne in mind that under the Settled Land Acts, restrictions are placed on the powers of trustees to sell settled land. This subject is dealt with in chap. xxiii. sect. 2, v. to which the reader is referred.]

¹ *Trustee for sale.* — If the trust instrument contains an express or implied power, the trustee need not apply to court for power to sell; *Lowe v. Grinnan*, 19 Ia. 193; *Iles v. Martin*, 69 Ind. 114; *Reeside v. Peter*, 35 Md. 221; but see *Foscue v. Lyon*, 55 Ala. 440. The trustee may convey to the cestui que trust, even though there is a provision in case of the latter's death, if authorized; *Sellew's App.* 36 Conn. 186. This power of sale may go with the legal estate, or be entirely independent of it; *Reid v. Gordon*, 35 Md. 184; *Prather v. McDowell*, 8 Bush, 46; *Tainter v. Clark*, 13 Met. 220; *White v. Howard*, 52 Barb. 294; *Peter v. Beverly*, 10 Pet. 532; *Jackson v. Burr*, 9 Johns. 104. Where the land descends to the heirs, the executors having a power to sell, it is a naked power, and until executed, the rents and profits belong to the heirs; *Braman v. Stiles*, 2 Pick. 460; *McKnight v. Wimer*, 38 Mo. 132; *Allen v. Demitt*, 3 Comst. 276; *Marsh v. Wheeler*, 2 Edw. Ch. 156; so too, if a trustee is the devisee. In the United States there are statutory provisions for the sale of real estate by those holding a fiduciary relation, and the heirs, devisees, or wards, hold until the sale takes place. 4 Kent, 321, n.

No particular form of words is required to establish a power of sale, if the intention appear, or if certain duties, necessitating a sale, are to be performed, it is sufficient; *Going v. Emery*, 16 Pick. 107; *Stockbridge v. Stockbridge*, 99 Mass. 244; *Savings Bank v. Ross*, 11 Allen, 443; *Williamson v.*